

a valid receipt for the fund, the subject of the trust (*l*). And the person bound by the trust is regarded in the same light as a committee of a lunatic, or guardian of an infant (*m*), that is, he has a duty imposed upon him; but so long as he discharges that duty, he is entitled to the surplus for his own benefit, and the Court requires from him no account retrospectively of the application of the fund (*n*), and allows him prospectively to propose any reasonable arrangement how the object of the trust may be accomplished (*o*), or will order payment to him on his *un- [*139]dertaking to maintain the children properly, with liberty to the children to apply (*a*). Should the person bound by the trust become by misconduct unfit to maintain and educate the children, the Court will not allow him to receive the fund (*b*); and should the fiduciary assign his interest, the Court will inquire what part is needed for the maintenance and education of the children, and will give the surplus only to the assignee (*c*).

14. **Forisfiliation.** — It follows from these principles that if there be no children born (*d*), or if they have since died (*e*), the person bound by the trust takes the whole produce for his own benefit. So the children lose their claim if they become forisfiliated, *i.e.*, cease to be members of or to belong to the establishment contemplated by the testator, as if a child marry (*f*), or under other circumstances maintain a separate establishment (*g*), for it can scarcely be sup-

(*l*) *Woods v. Woods*, 1 M. & Cr. 409, *per* Lord Cottenham; *Raikes v. Ward*, 1 Hare, 449, *per* V. C. Wigram; *Cooper v. Thornton*, 3 B. C. C. 186; *Robinson v. Tickell*, 8 Ves. 142; *Crockett v. Crockett*, 1 Hare, 451, 2 Phil. 553; *Greene v. Greene*, 3 Ir. R. Eq. 102, *per cur.*; but see *Webb v. Woods*, 2 Sim. N. S. 272.

(*m*) As to the position of committees and guardians see *Jodrell v. Jodrell*, 14 Beav. p. 411-413.

(*n*) *Leach v. Leach*, 13 Sim. 304; *Browne v. Paull*, 1 Sim. N. S. 92; *Carr v. Living*, 28 Beav. 644; *Hora v. Hora*, 33 Beav. 88.

(*o*) *Raikes v. Ward*, 1 Hare, 450.

(*a*) *Crockett v. Crockett*, 1 Hare, 451; *Hadow v. Hadow*, 9 Sim. 438.

(*b*) *Castle v. Castle*, 1 De G. & J. 352.

(*c*) *Carr v. Living*, 28 Beav. 644; *Scott v. Key*, 35 Beav. 291.

(*d*) *Hammond v. Neame*, 1 Swans. 35; *Cape v. Cape*, 2 Y. & C. Ex. 543; *Re Main's Settlement*, 15 W. R. 216.

(*e*) *Bushnell v. Parsons*, Pr. Ch. 219.

(*f*) *Bowden v. Laing*, 14 Sim. 113; *Carr v. Living*, 28 Beav. 644; *Staniland v. Staniland*, 34 Beav. 536; *Massey v. Massey*, W. N. 1873, p. 76.

(*g*) See *Thorpe v. Owen*, 2 Hare,